A LEGAL ASSESSMENT OF THE 1996 DECLARATION ON SPACE BENEFITS ON THE OCCASION OF ITS FIFTEENTH ANNIVERSARY

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I. INTRODUCTION

On December 13, 1996, in resolution 51/122, the United Nations General Assembly unanimously adopted the Declaration on International Cooperation in the Exploration and Use of Outer Space for the Benefit and in the Interest of all States, Taking into Particular Account the Needs of Developing Countries (the Declaration on Space Benefits), thus concluding a ten-year discussion on the topic within the Committee On the Peaceful Uses of Outer Space (COPUOS) and its Legal Subcommittee.

In 2011, during its fifty-fourth session, the Legal Subcommittee "noted with satisfaction that [this year] marked the fifteenth anniversary of the adoption by the General Assembly of the [Declaration on Space Benefits]."[1] On this occasion, an assessment of the value of this Declaration and its past, present, and future contribution to the development of international space law and policy remains as important as ever. Since the 1960s, the world has become increasingly dependent on space applications, particularly those related to telecommunications,

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[1] Comm. on the Peaceful Uses of Outer Space, Legal Subcomm, *Rep. on its 50th Sess., 28 March–8 April 2011*, ¶ 16, U.N. Doc. A/AC.105/990 (Apr. 20, 2011).

global navigation satellite systems, and earth observation. The increasing commercialization of space activities, the expanding number of space actors, and the growing awareness of the role of space activities in promoting sustainable development and preventing natural and human-made disasters worldwide, lend a timeliness to the analysis of the principles embodied in the Declaration. The near future promises further technological growth and continuing privatization of space activities, factors that might lead to a shift in the traditional concept of space-faring nations and to new developments in the utilization and exploration of outer space. Additionally, the risk of orbit saturation due to the increasing exploitation of outer space may further the debate between current and potential users over the exact meaning of using outer space for the benefit of all countries. In this context, it is important to assess the way in which the Declaration on Space Benefits exerts its influence, in order to establish a clearer understanding of the underlying principles of "international cooperation" and "use and exploration of outer space for the benefit and in the interest of all States."

The present Article will first focus on the legal and political background behind the negotiation and adoption of the Declaration on Space Benefits and will then examine the legal significance of the instrument. On the basis of the assumption that, although not legally binding, recommendatory General Assembly Resolutions can still have legal effects, this Article will attempt to define the Declaration on Space Benefits' potential role in the consolidation and/or formation of customary rules of international law. It will next assess its characterization as an authoritative means of interpretation of pre-existing treaty law. Finally, it will consider the value of the Declaration insofar as it creates a legitimate expectation that States, acting in accordance with the general principle of good faith, will abide by it in the area of space exploration.

Even conceding that the Declaration on Space Benefits has some legal effect, the fact that the Declaration does not define terminology used and lacks any form of enforcement mechanism means its practical legal relevance is inhibited. For this reason, the Declaration serves its purpose much more strongly as a moral and political instrument than as a legal one. Accordingly,

the last portion of the present Article will be dedicated to analyzing its political and moral implications.

II. THE ORIGINS OF THE DECLARATION ON SPACE BENEFITS

A. Legal Background

In 1986, the Venezuelan delegation proposed a new agenda item for the Legal Subcommittee entitled "[e]quitable access by States to the benefits derived from space technology."[2] Developing nations, in particular, believed that a cornerstone for building any genuine international cooperation in the realm of outer space included precisely defining the scope of the access to these benefits.[3] Largely as a result of the vague terminology of Article I of the Outer Space Treaty[4] and the internal tension it contains in its first two paragraphs, these developing nations began to press for more stringent legal obligations governing international cooperation and the use of outer space for the benefit of all countries.[5]

Specifically, paragraph 1 of Article I of the Outer Space Treaty states that "the exploration and use of outer space, including the Moon and other celestial bodies, shall be carried out for the benefit and in the interest of all countries, irrespective of their degree of economic or scientific development and shall be the province of all mankind," thus re-affirming principles already set out in the 1963 Declaration of Legal Principles Governing the Activities of States in the Exploration and Use of Outer Space[6] (hereinafter 1963 Declaration). In practical terms, by requiring that space activities are undertaken for the com-

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[2] Comm. on the Peaceful Uses of Outer Space, *29th Sess.*, ¶ 44, U.N. Doc. A/AC.105/SR.282, (Venezuela) (June 4, 1986).

[3] Comm. on the Peaceful Uses of Outer Space, Legal Subcomm, *28th Sess.*, ¶ 3, U.N. Doc. A/AC.105/C.2/SR.519, (Chile) (Apr. 10, 1989).

[4] Treaty on Principles Governing the Activities of States in the Exploration and Use of Outer Space, Including the Moon and Other Celestial Bodies, *opened for signature* Jan. 27, 1967, 18 U.S.T. 2410, 610 U.N.T.S. 205 [hereinafter Outer Space Treaty].

[5] *See* Nandasiri Jasentuliyana, *Article I of the Outer Space Treaty Revisited*, 17 J. SPACE L. 129, 129 (1989).

[6] *International Co-Operation in the Peaceful Uses of Outer Space*, U.N. Doc. A/RES/1962 (XVIII) (Dec. 13, 1963).

mon benefit of all mankind, the first paragraph of Article I of the Outer Space Treaty sets a general limit on the "free use and exploration of outer space without discrimination of any kind" recognized in paragraph 2.[7] In addition, Article I(1) has generally been interpreted to require international cooperation in the exploration and use of outer space, taking into account the interests of all States.[8] Nonetheless, the practical legal significance of this provision has been greatly debated. Two main issues have been particularly contentious: its legally binding force and the extent of its scope.

First, it has been argued that, given its broad reach, vague content, and the difficulties related to its enforcement, the principle contained in Article I(1) would only impose a *moral* obligation on States that carry out space activities.[9] Others, however, have stressed that the wording of the provision unequivocally exerts *legally* binding power due to its contractual nature.[10] During the negotiating process leading to the Declaration on Space Benefits, the Chinese representative, for instance, stressed that while "[d]oubts had often been expressed concerning the legal scope of Article I of the Outer Space Treaty," his delegation believed "there were no grounds for claiming that it was merely a general declaration of intents."[11]

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[7] STEPHAN HOBE, BERNHARD SCHMIDT-TEDD,& KAI-UWE SCHROGL (eds.), COLOGNE COMMENTARY ON SPACE LAW, VOL. I 38 (2009); *see also* BIN CHENG, STUDIES IN INTERNATIONAL SPACE LAW 404 (1997).

[8] R. Arzinger, *Legal Aspects of the Common Heritage of Mankind*, *in* 22ND PROC. COLLOQ. L. OUTER SPACE 89, 89 (1979); *see also* U.N. Doc. A/AC.105/C.2/SR.519, *supra* note 3, at ¶ 13 (United States of America); Comm. on the Peaceful Uses of Outer Space, Legal Subcomm, *28th Sess.*, ¶ 3, U.N. Doc. A/AC.105/C.2/SR.520, (Nigeria) (Apr. 6, 1989).

[9] *See, e.g.*, Bin Cheng, *The 1967 Outer Space Treaty: Thirtieth Anniversary*, 23 ANNALS AIR & SPACE L. 156, 163 (1998); B. Maiorsky, *A Few Reflections on the Meaning and Significance of "Province of all Mankind" and "Common Heritage of Mankind" Notions*, *in* 29TH PROC. COLLOQ. L. OUTER SPACE 58, 59 (1986); V. M. Postyshev, *On the Question of Space Exploration for the Benefit of Humanity: A Modest Proposal*, *in* 33RD PROC. COLLOQ. L. OUTER SPACE 236, 238 (1990).

[10] *See, e.g.*, Marco G. Markov, *Implementing the Contractual Obligation of Article I, Par. 1 of the Outer Space Treaty 1967*, *in* 17TH PROC. COLLOQ. L. OUTER SPACE 136, 137 (1975).

[11] Comm. on the Peaceful Uses of Outer Space, Legal Subcomm, *28th Sess.*, ¶ 18, U.N. Doc. A/AC.105/C.2/SR.521, (China) (Apr. 11, 1989).

Second, even if one accepts the latter argument that Article I creates a legal obligation, the vagueness of the terms used still raises questions about the practical meaning of concepts such as "use," "exploration," "benefit and interests of all countries," and "province of all mankind."[12] One wonders, for instance, whether only the "exploration and use" must be beneficial, or also the resources resulting from this activity.[13] Moreover, does the use of the term "benefit" imply participatory rights for developing countries,[14] and if so, to what extent?[15] This uncertainty over the exact significance of the terms of Article I of the Outer Space Treaty was expressed by the Venezuelan delegation. In the context of the new agenda item concerning international cooperation in space, the delegate suggested that the Legal Subcommittee "might start by trying to elucidate a number of notions found in the Outer Space Treaty, particularly the scope of obligation set forth in article I."[16]

One of the reasons behind the vague formulation of Article I(1) is that States involved in the drafting did not share a unanimous view of the value and significance of the general principle of international cooperation in space activities[17] or the way it was specifically provided for in Article I(1). Developed countries mainly linked the idea of international cooperation to the need for mutual assistance in launches or astronaut res-

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[12] *See* Stephen Gorove, *Freedom of Exploration and Use in the Outer Space Treaty: A Textual Analysis and Interpretation*, 1 DENV. J. INT'L L. & POL'Y 93 (1971) [hereinafter *Freedom of Exploration*]; Ernst Fasan, *The Meaning of the Term "Mankind" in Space Legal Language*, 2 J. OF SPACE L. 125 (1974); *see also* Stephen Gorove, *Concept of Common Heritage of Mankind: A Political, Moral or Legal Innovation*, 9 SAN DIEGO L. REV. 390, 392 (1972); Comm. on the Peaceful Uses of Outer Space, Legal Subcomm, *28th Sess.*, ¶ 14, U.N. Doc. A/AC.105/C.2/SR.522, (Ecuador) (Apr. 7, 1989).

[13] *See, Freedom of Exploration*, *supra* note 12, at 102.

[14] HOBE, *supra* note 7, at 40.

[15] *See, Freedom of Exploration*, *supra* note 12, at 102.

[16] Comm. on the Peaceful Uses of Outer Space, Legal Subcomm, *27th Sess.*, ¶ 2, U.N. Doc. A/AC.105/C.2/SR.501, (Venezuela) (Apr. 6, 1988); *see also* U.N. Doc. A/AC.105/C.2/SR.519, *supra* note 3, at ¶ 3 (statement of the Chilean delegation, arguing that cooperation between developed and developing countries in outer space had been impeded by the lack of a precise definition of what benefits should be shared and the scope of the benefits).

[17] *The 1967 Outer Space Treaty: Thirtieth Anniversary*, *supra* note 9, at 162.

cues[18] and understood the benefit provision as a general "appeal" limiting the uncontrolled use of outer space but not restricting their right to define how to share the benefits derived from space activities.[19] In contrast, developing countries saw the principle of international cooperation, as it was worded in Article I(1), as a recognition of the developed countries' "obligation" to concretely share the "resources" obtained from space activities.[20]

Following the adoption of the Outer Space Treaty, this divergence in the understanding and interpretation of the significance of Article I(1) was evident both in State practice and in the debates in the Legal Subcommittee. The dispute ultimately led to Venezuela's proposal to introduce a new item on the Legal Subcommittee's agenda, specifically dedicated to analyzing the "legal aspects related to the application of the principle of the exploration and use of outer space for the benefit and in the interests of all States."[21]

B. Political Setting

The negotiation, drafting, and adoption of the Declaration on Space Benefits possessed a strong political dimension. Linked to the legal debate described above, the Declaration was rooted in several political developments, such as the increase in space-faring nations (with new countries, such as China and India, acquiring growing space capabilities)[22] and an accentuation of the debate between developed and developing nations in the forum of space.[23] In parallel with the developing countries' attempts to implement a New International Economic Order on

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[18] Nandasiri Jasentuliyana, *Ensuring Equal Access to the Benefit of Space Technologies for all Countries*, 10 SPACE POL'Y 7, 9 (1994).

[19] *Id.*; *see, e.g.*, Comm. on the Peaceful Uses of Outer Space, Legal Subcomm, *5th Sess.*, ¶¶ 4–5, U.N. Doc. A/AC.105/C.2/SR.64, (Italy) and ¶ 6 (France) (Oct. 24, 1966).

[20] U.N. Doc. A/AC.105/C.2/SR.521, *supra* note 11, at ¶ 35 (Brazil).

[21] Comm. on the Peaceful Uses of Outer Space, Legal Subcomm, *Rep. on its 28th Sess., 20 March–7 April 1989*, section 3, U.N. Doc A/AC.105/430 (Apr. 26, 1989); *see also* U.N. Doc. A/AC.105/SR.282, *supra* note 2, at ¶ 44 (Venezuela).

[22] Marietta Benkö & Kai-Uwe Schrogl, *History and Impact of the 1996 UN Declaration on 'Space Benefits,'* 13 SPACE POL'Y 139, 139 (1997).

[23] *Id.*

the global scene,[24] the debate over the obligations of space-faring nations to share the benefits obtained through space activities with other countries flourished within COPUOS and its Legal Subcommittee.[25] Although only a small group of developing countries was demanding new technologies at the time of the conclusion of the Outer Space Treaty, as the membership of COPUOS grew, this distributive conflict between developing and developed countries intensified, especially in the 1970s.[26] While developing countries advocated a broad interpretation of the principle of international cooperation and their right to participate in the apportionment of the benefits arising from space activities as essential tools for promoting economic development, developed countries defended the economic value of their efforts and investments by supporting a stricter understanding of the existing legal provisions.[27] This tension between different interests, although present at the beginning of the space era,[28] intensified once the potential commercial value of space activities became apparent. Consequently, the broader debate addressed issues of the access to geostationary orbit, the potential exploitation of the Moon and other celestial bodies, and the use of data from remote sensing activities.

For instance, when Argentina proposed a draft for a new international agreement relating to the Moon and other celestial bodies in 1970,[29] developing countries saw an opportunity to deal with the issue of the equitable distribution of natural re-

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[24] Declaration on the Establishment of a New International Economic Order, U.N. Doc. A/RES/3201 (S-VI) (May 1, 1974).

[25] Edwin W. Paxson III, Note, Sharing the Benefits of Outer Space Exploration: Space Law and Economic Development, 14 MICH. J. INT'L L. 487, 487–88 (1992–1993).

[26] Marietta Benkö & Kai-Uwe Schrogl, *Article 1 of the Outer Space Treaty Reconsidered after 30 Years: "Free Use of Outer Space" vs. "Space Benefits,"* in OUTLOOK ON SPACE LAW OVER THE NEXT 30 YEARS 67, 69-70 (Gabriel Lafferranderie & Daphné Crowther eds., 1997).

[27] *See id.* at 70.

[28] *See, e.g.*, Aldo A. Cocca, *Legal Status of Celestial Bodies and Economic Status of the Celestial Products*, *in* 7TH PROC. COLLOQ. L. OUTER SPACE 15, 15 (1964).

[29] Draft Agreement on the Principles Governing Activities in the Use of the Natural Resources of the Moon and Other Celestial Bodies, U.N. Doc. A/AC.105/C.2/L.71 (June 23, 1970).

sources in space.[30] Nonetheless, the drafting process was handicapped by the failure of developing and developed countries to reach an agreement.[31] The definition of the Moon and other celestial bodies as the "common heritage of mankind"[32] and the related equitable sharing by all States of the economic benefits drawn from extra-terrestrial resources[33] became the object of new debate and different interpretations. Under these circumstances, most States did not ratify the Moon Agreement.

The dissatisfaction of developing countries with the outcome of their efforts to ensure their portion of the benefits derived from the commercial use of space technology was likely one of the main driving forces behind the developing countries' proposal to create a new Legal Subcommittee agenda item. The Chilean delegate to the Legal Subcommittee expressed this sentiment just a few months before the United Nations General Assembly adopted the Principles relating to the Remote Sensing of the Earth from Space.[34] He noted, "that, after long years of hard work, the hopes of the developing countries had been dashed, since it had not been possible to reconcile the advances in space technology and the necessary international regulations to cover the uses of outer space."[35]

C. Outcome of the Negotiations: the Declaration on Space Benefits

Against this legal and political backdrop, the views of the developing nations had long diverged from those of the developed nations with respect to what they hoped to achieve with the Declaration. The debate intensified in 1991 with the presen-

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[30] Carl Christol, *International Space Law and the Less Developed Countries*, *in* 19TH PROC. COLLOQ. L. OUTER SPACE 243, 249 (1976).

[31] FABIO TRONCHETTI, THE EXPLOITATION OF NATURAL RESOURCES OF THE MOON AND OTHER CELESTIAL BODIES: A PROPOSAL FOR A LEGAL REGIME 56–57 (2009).

[32] Agreement Governing the Activities of States on the Moon and Other Celestial Bodies, *opened for signature* Dec. 18, 1979, 1363 U.N.T.S. 21 [hereinafter Moon Agreement].

[33] *Id.* at art. 11(7).

[34] Principles Relating to Remote Sensing of Earth from Outer Space, G.A. Res. 41/65, U.N. GAOR, 41st Sess., 95th plen. Mtg., U.N. Doc. A/Res/41/65 (Dec. 3, 1986).

[35] Comm. on the Peaceful Uses of Outer Space, Legal Subcomm, *25th Sess.*, ¶ 9, U.N. Doc. A/AC.105/C.2/SR.439, (Chile) (Apr. 3, 1986).

tation of a working paper that pushed for a redistribution of technologies in a way that gave preferential treatment to developing countries.[36] As other authors have noted, in this "regime of forced cooperation[,] . . . States would virtually have lost their freedom in choosing their cooperative partner[s] and in determining the modalities of such cooperation."[37]

Though the developing nations softened the language of forced cooperation over the next several revisions to this working paper[38] and developed countries pointed out that they were already engaged in multilateral and bilateral space projects with developing nations,[39] it was not until the presentation of a new working paper by France and Germany in 1995 that there was a significant breakthrough in the negotiation. The Franco-German paper emphasized that nations should be free to determine their level of cooperation, stressed that the manner of cooperation should be appropriate and efficient, and proposed several areas in which this cooperation could be conducted.[40] In light of these advances, the final text developed from a merger of the two proposals during the Legal Subcommittee session in 1996.[41]

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[36] *Principles regarding international cooperation in the exploration and use of outer space for peaceful purposes*, Working Paper submitted by: Argentina, Brazil, Chile, Mexico, Nigeria, Pakistan, Philippines, Uruguay, and Venezuela, U.N. Doc A/AC.105/C.2/L.182 (Apr. 9, 1991), at Annex.

[37] *See, e.g.*, TRONCHETTI, *supra* note 31, at 71; Marietta Benkö & Kai-Uwe Schrogl, *'Space Benefits' – Towards a Useful Framework for International Cooperation*, 5 SPACE POL'Y 5, 6 (1995).

[38] *See Principles regarding international cooperation in the exploration and use of outer space for peaceful purposes*, Working Paper submitted by: Argentina, Brazil, Chile, Colombia, Mexico, Nigeria, Pakistan, Philippines, Uruguay, and Venezuela, U.N. Doc A/AC.105/C.2/L.182/Rev.1 (Mar. 31, 1993); *see also Principles regarding international cooperation in the exploration and use of outer space for peaceful purposes*, Working Paper submitted by: Brazil, Chile, Colombia, Egypt, Iraq, Mexico, Nigeria, Pakistan, Philippines, Uruguay, and Venezuela, U.N. Doc A/AC.105/C.2/L.182/Rev.2 (Mar. 23, 1995).

[39] *See, e.g.*, Comm. on the Peaceful Uses of Outer Space, Legal Subcomm, *30th Sess.*, ¶ 25, U.N. Doc A/AC.105/C.2/SR.544, (United Kingdom) (Apr. 17, 1995).

[40] *Declaration on international cooperation in the exploration and use of outer space for the benefit and in the interests of all States, taking into particular account the needs of developing countries*, Working Paper submitted by: Germany and France, U.N. Doc A/AC.105/C.2/L.197 (Mar. 24, 1995).

[41] *Draft Resolution*, Working Paper submitted by: the Chairman of the Working Group, U.N. Doc A/AC.105/C.2/L.202 (Mar. 27, 1996).

In its final form, the Declaration on Space Benefits provides eight paragraphs, whose content can be summarized as follows:

- International cooperation in the exploration of outer space should be conducted for the "benefit and interest of all states . . . and shall be the province of all mankind." Particular account should be taken of the needs of developing countries;
- States are free to choose how they engage in this cooperation, but it should be on an "equitable and mutually acceptable basis";
- States with more advanced space programs should promote international cooperation, especially with countries with incipient space programs;
- Countries engaging in cooperative ventures should determine the mode that is most effective, "including, *inter alia*, governmental and non-governmental; commercial and non-commercial; [and] global, multilateral, regional or bilateral;"
- International cooperation should strive to accomplish three goals: promoting development of space science and its applications, fostering this development in interested states, and facilitating exchanges of technology on a mutually acceptable basis;
- Space applications should be considered when contemplating methods of international development;
- COPUOS should have a strong role in this exchange of information; and
- States should be encouraged to contribute to the UN Programme on Space Applications.

III. Legal Review and Analysis of the Declaration on Space Benefits

A. Introductory Considerations

The Declaration on Space Benefits was discussed and adopted during the period that is often called the "second law-making phase" of COPUOS and its Legal Subcommittee. After the adoption of the 1979 Moon Agreement, the creation of treaty-law that had characterized the work of the Legal Subcommittee since the conclusion of the Outer Space Treaty in 1967 ended, and the adoption of declarations of principles by the

United Nations General Assembly became the preferred form for regulating certain issues on which the international community was not yet ready to negotiate legally binding instruments.[42] Several factors may have played a role in the shift towards a non-binding regulation of space activities.

Especially in areas where there is a significant amount of uncertainty, the use of soft law instruments[43] can provide a way for the parties to learn about the impact of their agreements before formalizing them and instituting strict legal consequences.[44] This is particularly relevant to the field of space, in which there are currently many unknowns and technological and scientific developments continuously change the practical framework in which agreed legal obligations have to be set. Furthermore, "soft law facilitates compromise, and thus mutually beneficial cooperation, between actors with different interests and values, different time horizons and discount rates, and different degrees of power."[45] The discussions that ultimately led to the adoption of the Declaration on Space Benefits fit into this scheme, as the final form that was adopted by consensus significantly diminished the obligations that were in earlier versions of the working papers. The developed and developing nations certainly had divergent interests and goals. In this way, the use of a soft law agreement to govern international cooperation in

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[42] Sergio Marchisio, *The Evolutionary Stages of the Legal Subcommittee of the United Nations Committee on the Peaceful Uses of Outer Space (COPUOS)*, 31 J. SPACE L. 219, 231 (2005). Four sets of principles were adopted in this second law-making period, namely: Principles Governing the Use by States of Artificial Earth Satellites for International Direct Television Broadcasting, G.A. Res. 37/92, U.N. GAOR, 37th Sess., 100th plen. Mtg., U.N. Doc. A/RES/37/92 (Dec. 10, 1982); Principles Relating to Remote Sensing of the Earth from Outer Space, *supra* note 34; Principles Relevant to the Use of Nuclear Power Sources in Outer Space, G.A. Res. 47/68, U.N. GAOR, 47th Sess., 85th plen. Mtg., U.N. Doc. A/RES/47/68 (Dec. 14 1992); and Declaration on International Cooperation in the Exploration and Use of Outer Space for the Benefit and in the Interest of All States, Taking into Particular Account the Needs of Developing Countries, G.A. Res. 51/122, U.N. GAOR, 51st Sess., 83d plen. Mtg., U.N. Doc. A/Res/51/122 (Dec. 13, 1996) [hereinafter Declaration on Space Benefits].

[43] For a definition of "soft law," see, for example, ANTHONY AUST, HANDBOOK OF INTERNATIONAL LAW 11 (2nd ed. 2010); WILLIAM R. SLOMANSON, FUNDAMENTAL PERSPECTIVES ON INTERNATIONAL LAW 36 (6th ed. 2010).

[44] Kenneth W. Abbott & Duncan Snidal, *Hard and Soft Law in International Governance*, 54 INT'L ORG. 421, 435 (2000).

[45] *Id.* at 423.

space served the purpose of facilitating compromise between States with different space capabilities.[46]

On the other hand, the desires of developing countries to establish new legal regulations that would keep pace with technological developments and fill the *lacunae* of existing international legal instruments seem to have been frustrated by the adoption of a non-legally binding Declaration.[47] However, the legal relevance of the Declaration on Space Benefits cannot be underestimated.

Except for resolutions concerning internal administrative and financial issues, United Nations General Assembly resolutions cannot be considered binding upon Member States and do not create per se norms of public international law.[48] Even so, considerable debate exists over whether recommendatory General Assembly resolutions can have legal *effects*, especially when they assume the form of solemn declarations and are adopted by consensus. Different opinions exist, both among States and in doctrine, about the effective legal significance of these resolutions.[49] One view is that these resolutions are merely "recommendations," thus wanting any legal value and having at most moral or political effects.[50] A second view is that even if these

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[46] *Id.* at 448.

[47] *Consideration of the Legal aspects related to the Access of States to the benefits derived from the exploration and use of Outer Space,* Working Paper submitted by: the Group of 77 of the Legal Sub-Committee, ¶ 5, U.N. Doc. A/AC.105/C.2/L.162, (Group of 77) (Apr. 1, 1987).

[48] Some authors, however, consider General Assembly resolutions as a source of international law by themselves. *See* D. H. N. Johnson, *The Effects of Resolutions of the General Assembly of the United Nations*, 32 BRIT. Y.B. INT'L L. 97, 105 (1955–1956); *see also* Christopher Joyner, *UN Resolutions and International Law*, 11 CAL. W. INT'L L.J. 445 (1981). The authors of the present Article, nonetheless, do not agree with this view due to its inconsistence with the terms of Article 38(1) of the Statute of the International Court of Justice, which lists as primary sources of international law only international conventions, customs, and general principles of law recognized by civilized nations. Statute of the International Court of Justice, art. 38(1), June 26, 1945, 59 Stat 1031.

[49] Andrei Terekhov, *UN General Assembly Resolutions and the Outer Space Law*, *in* 40TH PROC. COLLOQ. L. OUTER SPACE 97, 97 (1997).

[50] *But see* F. Blaine Sloan, *The Binding Force of a 'Recommendation' of the General Assembly of the United Nations*, 25 BRIT. Y.B. INT'L L. 1, 1 (1948) (pointing out that some scholars take the extreme position that "no resolution can create either a legal or a moral obligation").

resolutions lack an element of "true obligation," they may still maintain a certain "legal relevance."[51]

The perspective that a General Assembly resolution carries some legal effects is generally supported by the jurisprudence of the International Court of Justice. Although it did not specifically indicate the reasons motivating its conclusions, the Court has acknowledged the legal value of General Assembly resolutions in the development of international law.[52] In particular, in the advisory opinion on the *International Status of South-West Africa*,[53] the Court observed that the United Nations General Assembly Declaration on the Granting of Independence to Colonial Countries and Peoples[54] contributed to and was part of the "development of law through the Charter of the United Nations and by way of customary law."[55] Hence, the Court seems to have recognized the potential legal effects of General Assembly resolutions, at least as a means of interpretation of treaty law or as a factor contributing to the consolidation or emergence of customary rules.[56]

Although not legally binding, General Assembly resolutions may play a significant role in the development of international law. The International Court of Justice, when deciding how best to decide disputes in accordance with international law, looks to customs, treaties,[57] and "general principles of law recognized by

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[51] Johnson, *supra* note 48, at 117.

[52] Western Sahara, Advisory Opinion, 1975 I.C.J. 12, ¶¶ 52–59 (Oct. 16) (referring, for example, to the Declaration on Principles of International Law concerning Friendly Relations and Co-operation among States in accordance with the Charter of the United Nations).

[53] Legal Consequences for States of the Continued Presence of South Africa in Namibia (South-West Africa) Notwithstanding Security Council Resolution 276 (1970), Advisory Opinion, 1971 I.C.J. 16, 31 (June 21).

[54] U.N. Doc. A/RES/15/1514 (Dec. 14, 1960).

[55] *See supra* note 53, at 31.

[56] Stephen M. Schwebel, *The Effect of Resolutions of the U.N. General Assembly on Customary International Law*, 73 PROC. OF THE AM. SOC'Y OF INT'L L. 301, 303 (1979).

[57] *See, e.g.*, Faustino Pocar, *The Normative Role of UNCOPUOS*, *in* OUTLOOK ON SPACE LAW OVER THE NEXT 30 YEARS 415, 417 (Gabriel Lafferranderie & Daphné Crowther eds., 1997); *see also* Johnson, *supra* note 48, at 116 (arguing that General Assembly resolutions, although not sources of international law, display their "legal effect" as a means of determining the rules of international law).

civilized nations."[58] Non-binding resolutions can help clarify these sources of international law.

As far as custom is concerned, General Assembly resolutions might help establish obligatory rules by declaring and specifying pre-existing customary norms or by contributing, where followed by consistent State practice or expressions of *opinio juris*, to the establishment of new customary rules.[59] Additionally, under certain conditions, these resolutions could be regarded as a valuable means of interpretation of pre-existing (or even future) treaty provisions, insofar as they contribute to the clarification of rights and obligations expressed in conventions.[60] Finally, declaratory resolutions may create certain legitimate expectations that States should respect under the general principle of good faith.

The fact that the Declaration on Space Benefits was adopted as a General Assembly resolution means that we must consider its legal assessment within the framework described above. For this reason, and recognizing that General Assembly resolutions vary significantly in their scope and content, each of the possible legal hooks requires a thorough analysis to determine whether and to what extent it is of any relevance.

B. Principles of the Declaration on Space Benefits as International Custom

Article 38(1)(b) of the Statute of the International Court of Justice identifies a primary source of international law in "international custom, as evidence of a general practice accepted by law."[61] Two elements traditionally constitute customary law: State practice and *opinio juris*, the latter denoting a State's subjective belief that its conduct is prescribed as a legal obligation.[62]

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[58] Statute of the International Court of Justice, *supra* note 48, at art. 38(1)(a)-(c).

[59] Pocar, *supra* note 57, at 417; *see also* Marchisio, *supra* note 42, at 332.

[60] Pocar, *supra* note 57, at 420.

[61] Statute of the International Court of Justice, *supra* note 48, at art. 38(1)(b).

[62] *See generally* Tullio Treves, *Customary International Law*, *in* MAX PLANCK ENCYCLOPEDIA OF PUBLIC INTERNATIONAL LAW, ¶¶ 7–11, *available at* http://www.mpepil.com/subscriber_article?id=/epil/entries/law-9780199231690-e1393 (last visited May 12, 2012); Niels Petersen, *Customary Law without Customs? Rules,*

Consequently, even though the Declaration on Space Benefits has no formal legal power as a whole, certain principles may become vested with legal authority *erga omnes*, where they are supported by continuous and consistent State practice and where States regard them as constituting legal duties.

From this perspective, however, it is difficult to assess whether the principles of the Declaration reflect the actual commitment of the Parties to be bound by them, due to the conceptual tension of attempting to attribute legal effects to provisions that States deliberately chose to include in non-binding instruments.[63] Cutting in favor of the potential customary law value of the Declaration, though, is not only its adoption by consensus in COPUOS and unanimously in the General Assembly,[64] but also the presence of the term "declaration" in its title.

Manfred Lachs, former Judge of the International Court of Justice and Chairman of the COPUOS Legal Subcommittee, in referring to the 1963 Declaration, emphasized States' commitment to abide by General Assembly declarations by stating: "one cannot underestimate the value of these principles once they are adopted in a solemn Declaration by the General Assembly of the United Nations."[65] Similarly, Professor Kopal recognizes that declarations of principles adopted by the Legal Subcommittee could be regarded as expressions of "a legal conviction of all members of the world organization, or an overwhelming majority thereof, concerning their particular subject matter."[66]

Principles and the Role of State Practice in International Norm Creation, 23 AM. U. INT'L REV. 275, 280 (2008).

[63] Christine Chinkin, *The Challenge of Soft Law: Development and Change in International Law*, 38 INT'L & COMP. L.Q. 850, 856 (1989).

[64] *But see* Schwebel, *supra* note 56, at 302 (expressing the view that the consensus requirement loses any practical value due to the fact that it is generally moved by political reasons and not by the real desire of States to abide by the principles expressed).

[65] Comm. on the Peaceful Uses of Outer Space, *5th Sess.*, U.N. Doc. A/AC.105/PV.24, 4–5 (Poland) (Nov. 22, 1963).

[66] Vladimír Kopal, *The Role of UN Declarations of Principles in the Progressive Development of Space Law*, 16 J. SPACE L. 5, 19 (1988). This was particularly true with regard to the 1963 Declaration, for which the terminology "Declaration" was used and the principles were explicitly referred to as "legal." *Id.* at 17.

According to the 1962 "Memorandum of the United Nations Office of Legal Affairs on the Use of the Terms 'Declaration' and 'Recommendation'":

> In United Nations practice, a "declaration" is a formal and solemn instrument, suitable for rare occasions when principles of great and lasting importance are being enunciated. . . .
>
> . . . In view of the greater solemnity and significance of a "declaration," it may be considered to impart, on behalf of the organ adopting it, a strong expectation that Members of the international community will abide by it. Consequently, in so far as the expectation is gradually justified by State practice, a declaration may by custom become recognized as laying down binding rules upon States.[67]

It is clear from the above quotation that a General Assembly Declaration does not act per se as a source of custom. Nonetheless, due to its solemnity and significance, it constitutes strong evidence of the commitment of States to act according to its content. If this *opinio* is supported by consistent State practice, the principles embodied in the Declaration might become binding obligations by means of customary law. Consequently, the principles contained in a General Assembly Declaration can assume legal relevance by declaring or consolidating pre-existing customary rules or by representing emerging *opinio juris* that, where supported by continuous and coherent State practice,[68] can lead to the formation of new customs.[69]

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[67] 18 U.N. ESCOR, ¶¶ 3–4, U.N. Doc. E/CN.4/L.610 (1962), (*quoted in* Bin Cheng, *The United Nations and Outer Space*, *in* STUDIES IN INTERNATIONAL SPACE LAW 91, 133 (1997).

[68] Some authors propose that, in the new institutionalized framework of international relations, customary rules would directly descend from States' *opinio juris* as embodied in General Assembly resolutions, thus obviating any need for further State practice ("instant custom" doctrine). *See* Joyner, *supra* note 48, at 457. This understanding appears not only to conflict with the view expressed by the United Nations Office of Legal Affairs, but also raises questions about States' deliberate choice to use a non-binding instrument and the General Assembly's lack of legislative powers. In addition, despite the fact that the instant customary law doctrine was first proposed by Professor Bin Cheng with reference to the earliest resolutions on outer space, Cheng, *The United Nations and Outer Space*, *supra* note 67, the International Court of Justice has been reluctant to adhere to it. Indeed, even where the Court practically concentrated its analysis on the subjective element of *opinio juris*, as in the *Nicaragua Case*, Military

As to the first point, some of the principles embodied in the Declaration on Space Benefits seem to merely restate pre-existing treaty law and confirm previous State practice. For instance, Paragraph 1 recognizes that:

> International cooperation in the exploration and use of outer space . . . shall be conducted in accordance with the provisions of international law . . . [and] shall be carried out for the benefit and in the interest of all States, irrespective of their degree of economic, social or scientific and technological development, and shall be the province of all mankind.

Without repeating the debate over the moral or legal value of such general provisions and the difficulties relating to their enforcement, it could be argued that a restatement of principles, where so broadly formulated, might be regarded as consolidating their customary law nature.[70] Some evidence to support this argument rests on the inclusion of similar provisions in the Outer Space Treaty and their consequent application to multilateral and bilateral relations.[71] The lack of debate during the negotiating process leading to the adoption of the Declaration itself constitutes further evidence. In that context, while considerable discussion took place as to the practical content and application of these principles, no State questioned their general validity.

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and Paramilitary Activities in and Against Nicaragua (Nicar. v. U.S.), Merits, 1986 I.C.J. 14, 101 (June 27), it formally reiterated the traditionally two-fold approach of international customary law as constituted by both State practice and *opinio juris*, *id.* at 183, and recognized that a General Assembly declaration only indicates a State's *opinio juris* as to the existence of customary international law on the subject, *id.* at 191 (referring to the Declaration on Principles of International Law and Co-operation among States in accordance with the Charter of the United Nations (G.A. Res. 2625 (XXV)). Based on the above considerations, the Declaration on Space Benefits has to be regarded as a solemn expression of States' commitment to abide by its principles. Nonetheless, these principles can acquire a legal value by means of custom only to the extent that they declare and thus consolidate pre-existing customary rules or express a general *opinio juris* followed by and crystallized in subsequent State practice.

[69] Chinkin, *supra* note 63, at 857.

[70] TRONCHETTI, *supra* note 31, at 26.

[71] *See, e.g.*, Agreement between the Government of Australia and the Government of the Russian Federation on cooperation in the field of the exploration and use of outer space for peaceful purposes, pmbl., May 23, 2001, 2438 U.N.T.S. 43916.

Similar considerations may also apply to the Declaration's principle that cooperation should take into particular account the needs of developing countries.[72] Looking at related previous State practice and *opinio juris*, we could argue that the consensus reached on the inclusion of this provision in the Declaration on Space Benefits cemented its pre-existing general acceptance. Article 11(7) of the Moon Agreement, foreseeing the potential establishment of an international regime to govern the exploitation of the natural resources of the Moon and other celestial bodies, states that "the interest and needs of the developing countries . . . shall be given special consideration." Regardless of the small number of nations that are party to this Treaty,[73] the relevance of this provision lies in the fact that the Moon Agreement was adopted by consensus within COPUOS. In addition, the principle that the needs of developing countries should be given special consideration is also contained in Principles 1 and 6 of the Direct Television Broadcasting Principles and in Principle II of the Remote Sensing Principles. Although intrinsically lacking binding force, these instruments, in the same way as the Declaration on Space Benefits, can constitute evidence of the general perception and practice of a given principle of law, thus acquiring binding effects by means of custom.

Broadening our perspective slightly, it is worth noting that the principle that international cooperation in space activities should take into particular account the needs of developing countries could also be read as a specific application of a more general international legal obligation to the space sector. This concept is expressed in international instruments such as United Nations General Assembly resolutions 1803 (XVII) ("Permanent Sovereignty over Natural Resources"),[74] 3384 (XXX) ("Declaration on the Use of Scientific and Technological Progress in the Interest of Peace and for the Benefit of all Man-

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[72] Declaration on Space Benefits, *supra* note 42, at ¶¶ 1 and 3.

[73] Thirteen, as of this writing in July 2012. *See* Treaty Status Index, UN OFFICE FOR OUTER SPACE AFFAIRS, http://www.oosa.unvienna.org/oosatdb/showTreatySignatures.do (last visited May 12, 2012).

[74] G.A. Res. 1803 (XVII), U.N. GAOR, 17th Sess., Supp. No. 17, U.N. Doc. A/5217, at pmbl. (Dec. 14, 1962).

kind")[75] and 41/128 ("Declaration on the Right to Development").[76] While each of these is a non-binding instrument, when considered together, they might be indicative of the customary law nature and the binding force of certain obligations.

Thus, the inclusion in the Declaration on Space Benefits of the principles that recognize the need to carry on space activities for the benefit of all mankind and to take into particular account the needs of developing countries in this respect can substantiate the existence of customary law principles, as supported by previous State practice and other evidence of *opinio juris*.

The scenario differs, though, when analyzing the other principles of the Declaration on Space Benefits, in particular Paragraphs 2, 3, and 4. Read together, these paragraphs state the absence of any mandatory form of international cooperation and assert the need to develop cooperative ventures that take into consideration both the interests of developed and developing countries. Putting aside any consideration of the practical significance and application of these provisions, we must determine whether the dual right and duty of space powers to determine their level of cooperation and to set equitable contractual terms for this cooperation can be regarded as expressing general customary law principles. One cannot deny that international cooperation in space activities has generally developed according to these principles since the beginning of the space era. Despite this expression of state practice, however, when considering earlier expressions of *opinio juris*, there was no clear manifestation of the States' unanimous recognition of the binding nature of these principles. On the contrary, as already highlighted, the controversy over the legal strength and specific terms of guidelines for international cooperation in space activities was ultimately the *raison d'être* behind the negotiations of the Declaration on Space Benefits.

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[75] G.A. Res. 3384 (XXX) U.N. GAOR, 30th Sess., Supp. No. 34, U.N. Doc. A/10034, at pmbl. and ¶ 4 (Nov. 10, 1975).

[76] G.A. Res. 41/128, U.N. GAOR, 41st Sess., Supp. No. 53, U.N. Doc. A/RES/41/128, at pmbl. and art. 4(2) (Dec. 4, 1986).

Nonetheless, the fact that these principles do not declare or consolidate pre-existing customary rules does not prevent them from becoming expressions of new *opinio juris*, agreed upon by both developed and developing countries. Where followed by consistent State practice, they would have already come to define new customary rules, or may do so in the future. This continuous State practice by the international community would demonstrate the shared perception that certain provisions of the Declaration fill an international normative gap or supply missing legal needs,[77] thus attaching the legal nature of international customs to these principles.

An examination of State practice following the adoption of the Declaration on Space Benefits indicates consistency between States' actual conduct and the principles enshrined in the Declaration. For example, the development of international cooperation in space activities on an equitable and mutually acceptable basis has been fostered through various bilateral agreements.[78] This principle has also been affirmed in multilateral contexts such as UNISPACE III,[79] during which States acknowledged the advantages of working together for common goals and identified bilateral and regional agreements, program-specific agreements, and transnational commercial activities as mechanisms to follow in order to enhance international cooperation in space.[80]

Similarly, paragraph 7 of the Declaration on Space Benefits, which advances the idea that the role of COPUOS should be strengthened as a forum for sharing information on space activities, was applied practically when the Legal Subcommittee

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[77] *See* Joyner, *supra* note 48, at 463.

[78] *See, e.g.*, Agreement between the Government of the Federative Republic of Brazil and the Government of Ukraine on technology safeguards associated with participation of Ukraine in launches from the Alcantara Launch Centre, pmbl., Jan. 16, 2002, 2298 U.N.T.S. 40946.

[79] Third United Nations Conference on the Exploration and Peaceful Uses of Outer Space (UNISPACE III), held in Vienna from 19 to 30 July 1999, U.N. Doc. A/CONF.184/6 [hereinafter UNISPACE III]; *see, e.g.*, Report on the United Nations/Brazil Workshop on Space Law on the theme "Disseminating and developing international and national space law: the Latin America and Caribbean perspective," (Rio de Janeiro, Brazil, Nov. 22-25, 2004), ¶ 27, U.N. Doc. A/AC.105/847, (Feb. 8, 2005).

[80] UNISPACE III, *supra* note 79, at 19.

agreed to add new agenda items like "General exchange of information on national legislation relevant to the peaceful exploration and use of outer space"[81] or "Information on the activities of international intergovernmental and non-governmental organization relating to space law."[82]

More generally, COPUOS Member States have further reiterated their acceptance and perception of the value of the general principles contained in the Declaration as part of the discussion within the Committee.[83] This is evident, for example, in the 2011 COPUOS "Report on international cooperation in promoting the use of space-derived geospatial data for sustainable development," according to which, "[i]n building up national infrastructure to use space-derived geospatial data for sustainable development, States should act in accordance with . . . the Declaration [on Space Benefits]."[84]

Fifteen years have elapsed since the adoption of the Declaration on Space Benefits and subsequent State practice has shown a general observance of the principles embodied in the instrument. Nonetheless, considering the unavoidable arbitrariness of the concepts of "state practice" and "customary law," it is too early to affirm with certainty that some of these principles can be regarded as international customary rules, especially in the absence of a decision by an international tribunal or their subsequent codification into a treaty.

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[81] This agenda item was agreed upon by COPUOS at its 46th session and subsequently endorsed by the General Assembly in its resolution A/RES/62/217 (Dec. 22, 2007). *See, e.g.*, Comm. on the Peaceful Uses of Outer Space, Legal Subcomm, *Rep. on its 47th Sess., 31 March–11 April 2008*, ¶ 131, U.N. Doc. A/AC.105/917 (Apr. 18, 2008).

[82] This agenda item was agreed upon by COPUOS at its 42nd session and subsequently endorsed by the General Assembly in its resolution A/RES/45/77 (Dec. 12, 1990). *See e.g.*, Comm. on the Peaceful Uses of Outer Space, Legal Subcomm, *Rep. on its 39th Sess., 27 March–7 April 2000*, ¶ 27, U.N. Doc. A/AC.105/738 (Apr. 20, 2000).

[83] *See, e.g.*, Draft Report of COPUOS on the implementation and recommendations of UNISPACE III, ¶ 9, U.N. Doc. A/AC.105/L.255 (Apr. 13, 2004).

[84] *Report on international cooperation in promoting the use of space-derived geospatial data for sustainable development*, ¶ 36, U.N. Doc. A/AC.105/973 (Mar. 21, 2011).

C. *The Declaration on Space Benefits as an Authoritative Means of Interpretation of Pre-existing Treaty Law*

The legal relevance of the Declaration on Space Benefits might also rest on its use as an authoritative means of interpreting Article I(1) of the Outer Space Treaty, whose terms are expressly recalled in the title of the Declaration.[85]

According to Article 31(3) of the Vienna Convention on the Law of Treaties,[86] whose provisions apply *erga omnes* and retroactively by means of their customary law nature,[87] when interpreting a Treaty, one should consider the context along with "(a) any subsequent agreement between the parties regarding the interpretation of the treaties or the application of its provisions; [and] (b) any subsequent practice in the application of the treaty which establishes the agreement of the parties regarding its interpretation."

The term "agreement" in Article 31(3)(a) does not limit the applicability of the provision to subsequently ratified treaties, but extends its scope to informal agreements such as those recorded in the minutes of a meeting or a press release.[88] According to Judge Weeramantry's dissenting opinion in the *Kasikili/Sedudu Case*,[89] the mere "understanding" between the parties would also qualify as an "agreement" within the meaning of Article 31(3)(a).[90] Regardless of whether one agrees with this last view, however, it is evident that a General Assembly resolution, especially where unanimously adopted by States, can fit within the broad interpretation generally attributed to the word "agreement" in Article 31(3)(a). In addition, while some authors believe that only acts performed with the intent to es-

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[85] TRONCHETTI, *supra* note 31, at 62.

[86] The Vienna Convention on the Law of Treaties, May 23 1969, 1155 U.N.T.S. 331, 8 I.L.M. 679.

[87] *See, e.g.*, Arbitral Award of 31 July 1989 (Guinea-Bissau v. Sen.), Judgment, 1991 I.C.J. 53, ¶ 48 (Nov. 12); Gab íkovo-Nagymaros Project (Hung. v. Slovk.), Judgment, 1997 I.C.J. 7, ¶ 46 (Sept. 25).

[88] Hazel Fox, *Article 31(3)(a) and (b) of the Vienna Convention and the Kasikili/Sedudu Island Case*, *in* ISSUES OF TREATY INTERPRETATION AND THE VIENNA CONVENTION ON THE LAW OF TREATIES: 30 YEARS ON, 59, 63 (Malgosia Fitzmaurice, Olufemi Elias, and Panos Merkouris, eds., 2010).

[89] Kasikili/Sedudu Island (Bots. v. Namib.), Judgement, 1999 I.C.J. 1045 (Dec. 13).

[90] Kasikili/Sedudu Island (dissenting opinion of Judge Weeramantry), at ¶ 24.

tablish a legal relationship could qualify as an "agreement" under Article 31(3)(a)[91] – thus indirectly excluding non-binding General Assembly resolutions from the scope of this provision – this view clashes both with the use of the general term "agreement" in the text of the Convention and with the jurisprudence of international tribunals.[92]

The Declaration on Space Benefits could also be regarded as "subsequent state practice" under the terms of Article 31(3)(b).[93] The never-ending doctrinal debate over the exact scope of State practice in international law notwithstanding, the majority of legal scholars see not only actual conduct, but also "paper practice" (*e.g.*, declarations or written agreements), as state practice.[94] Furthermore, even if the term "practice" generally implies that a State's conduct has occurred with a certain frequency,[95] there is nothing that formally excludes a State's declaration, a one-time occurrence, from being relevant as State practice. This is especially true, considering that the language of Article 31(3)(b) implies that the reiteration of certain conduct only functions to demonstrate that the parties agree to a given treaty interpretation.[96] Consequently, where a one-time action expresses the agreement of the parties, as in the case of the Declaration on Space Benefits, this conduct would qualify as "state practice" under Article 31(3)(b). Nevertheless, even if one rejects the latter argument and accepts that State practice exists only as a sum of consistent and continuous acts, the adoption of the Declaration on Space Benefits retains indicative value of exist-

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[91] ULF LINDERFALK, ON THE INTERPRETATION OF TREATIES: THE MODERN INTERNATIONAL LAW AS EXPRESSED IN THE 1969 VIENNA CONVENTION ON THE LAW OF TREATIES 162 (2007); *see also* MUSTAFA KAMIL YASSEEN, L'INTERPRÉTATION DES TRAITÉS D'APRÈS LA CONVENTION DE VIENNE SUR LE DROIT DES TRAITÉS [TREATY INTERPRETATION ACCORDING TO THE VIENNA CONVENTION ON THE LAW OF TREATIES] 44–45 (1976).

[92] *See, e.g.*, United States-United Kingdom Arbitration Concerning Heathrow Airport Users Charges, Award of 30 November 1993, 102 I.L.R. 216; The Kingdom of Belgium, The French Republic, The Swiss Confederation, The United Kingdom and the United States v. The Federal Republic of Germany, Award of 16 May 1980 (Young Loan Case), 59 I.L.R. 495 (*quoted in* LINDERFALK, *supra* note 91, at 171–73).

[93] Pocar, *supra* note 57, at 419.

[94] Petersen, *supra* note 62, at 278.

[95] MARK E. VILLIGER, COMMENTARY ON THE 1969 CONVENTION ON LAW OF TREATIES 431 (2009).

[96] LINDERFALK, *supra* note 91, at 166.

ing State practice with respect to a certain interpretation of a treaty provision.

There are, however, two possible objections to the applicability of Article 31(3)(a) and (b) to the case at hand.

First, the general rules of interpretation set out in Article 31(3) "can only be invoked if all the parties of the treaty have been involved in the interpretation of a treaty provision or if one or more of the parties have been involved by means of an instrument or subsequent state practice to which the other parties have agreed."[97] The Declaration on Space Benefits was negotiated and adopted by consensus in COPUOS. The fact that the number of States that were (and still are) members of COPUOS is far less than the number of States that have ratified the Outer Space Treaty[98] might cast doubt on the validity of using the Declaration as an authoritative interpretation of Article I of the Outer Space Treaty. Nonetheless, the Declaration on Space Benefits was unanimously adopted as a Resolution of the General Assembly; hence, all the Parties of the Outer Space Treaty (all of whom are Members of the General Assembly) indirectly consented to it. Accordingly, the Declaration on Space Benefits would express the agreement of all the Parties to the Outer Space Treaty, regardless of the fact that only some of its Parties were part of its negotiation and adoption in COPUOS.

Second, there may be doubts as to whether the Declaration on Space Benefits can be viewed as an agreement "*regarding*" the interpretation of the Outer Space Treaty or as State practice "*in the application*" of this Treaty. For an agreement to be "regarding the interpretation of a treaty," it is necessary that its purpose is to clarify the meaning of a treaty or to set guidelines for its application.[99] State practice "in the application of [a] treaty" refers instead to any measure taken by a State on the basis of the interpreted treaty.[100] Is the interpretation of Article I(1) of the Outer Space Treaty the purpose for which the Decla-

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[97] VILLIGER, *supra* note 95, at 429.

[98] As of this writing in July 2012, COPUOS has 71 Member States and the Outer Space Treaty has 101 States Parties and 26 Signatories. For up-to-date information on treaty status, see Treaty Status Index, *supra* note 73.

[99] LINDERFALK, *supra* note 91, at 162.

[100] *Id.*

ration on Space Benefits was negotiated and adopted? Can this Declaration be regarded as a measure taken by States on the basis of the Outer Space Treaty? That the wording of Article I(1) of the Outer Space Treaty appears in both the title and the first operative paragraph of the Declaration on Space Benefits supports affirmative answers to these questions. In addition, as previously noted, it was the uncertainty over the vague wording of Article I(1) of the Outer Space Treaty that led developing countries to insist on the inclusion of a new item on the agenda of the Legal Subcommittee and that dictated the terms of the negotiations leading to the adoption of the Declaration. Furthermore, the strong link between the Declaration on Space Benefits and the need to clarify the exact meaning of Article I(1) of the Outer State Treaty is further confirmed by the fact that, as a first step in the drafting process, States were asked to report on any national legal frameworks related to the application of this provision.[101] Nonetheless, the question of whether such elements are enough to describe the Declaration on Space Benefits as an agreement whose main purpose is the interpretation of Article I of the Outer Space Treaty or as an action taken as a result of the Treaty is at least debatable, especially considering that no specific mention of this (agreed) intent appears either in the text of the Declaration or in its drafting records.

D. The Declaration on Space Benefits and the Duty of States to Act in Good Faith

The Declaration on Space Benefits might acquire legal relevance because when States adopted it, they created a legitimate expectation in the minds of other Parties that they would act in good faith. Despite the debate over the nature and effect of good faith in international law, it is evident that if this principle is considered a source of law,[102] a State's conduct can acquire legal significance from the expectation that the State would act in

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[101] U.N. Doc. A/AC.105/C.2/SR.519, *supra* note 3, at ¶ 1.

[102] In particular, good faith would fall under the terms of "general principles of law recognized by civil nations." Statute of the International Court of Justice, *supra* note 48, at art. 38(1)(c).

conformity in the future. It has been pointed out that good faith in its objective sense "is a powerful source of obligations, attaching *ex lege* certain consequences to certain courses of conduct."[103] These obligations arise because good faith requires that when one acts in a certain way so as to create a reasonable expectation in another party, that party should be able to rely on its expectation, regardless of the actor's real intent.[104] Historically, this interpretation seems supported by the *bona fides* principle's roots in natural law, which was conceived to induce States to consider the legitimate expectation of other international actors.[105]

If this acceptation of good faith is applied to the case at hand, a State's acceptance of the Declaration on Space Benefits could be regarded as carrying legal consequences regardless of its intent to be legally bound by it. As a result of the expectation created in the international community following the adoption of the Declaration, States would be required to respect the principles of international cooperation in space activities to which they had agreed. The reliance generated would be stronger for COPUOS Member States, due to their involvement in the negotiation and adoption of the Declaration within the Committee. On the other hand, it would not be limited to COPUOS Member States because of the Declaration's later unanimous adoption by the General Assembly. In addition, this expectation would apply both to the current and future space powers and, according to the terms of the Declaration, implies compliance with certain principles of international cooperation by both developed and developing countries.

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[103] Robert Kolb, *Principles as Sources of International Law (With Special Reference to Good Faith)*, 53 NETH. INT'L L.R. 1, 19 (2006).

[104] *See id.* at 17.

[105] Anthony D'Amato, *Good Faith*, *in* ENCYCLOPEDIA OF PUBLIC INTERNATIONAL LAW 599, 600 (Rüdiger Wolfrum ed., 1992).

The idea of good faith as source of international law seems to be endorsed by the decision of the International Court of Justice in the *Nuclear Tests Case*.[106] According to the Court:

> Trust and confidence are inherent to international co-operation, in particular in an age when this co-operation in many fields is becoming increasingly essential. Just as the very rule of *pacta sunt servanda* in the law of treaties is based on good faith, so also is the binding character of an international obligation assumed by unilateral obligation.[107]

By using the principle of good faith to attribute legal effects to a State's unilateral declaration,[108] the Court set the basis not only for the recognition of the normative role of this principle, but also for its extended application to the mere unilateral pronouncements of States.[109] Logically then, a formal multilateral Declaration can, in the same way or even more strongly, assume legal relevance through the application of the good faith principle.

Some authors, however, have contested the normative role of the good faith principle in international law.[110] In general, these scholars see good faith not as a source of international law, but rather only as a moral guiding principle in the application of existing legal rules.[111] They base their view on the word-

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[106] Nuclear Tests Case (N.Z. v. Fr.), 1974 I.C.J. 457 (Dec. 20); *cf.* Kolb, *supra* note 103, at 21–23 (arguing that the idea of good faith as a source of law also informed other judgments of the International Court of Justice, for example, Fisheries Case (U.K. v. Nor.), Judgment, 1951 I.C.J. 116 (Dec. 18) and Temple of Preah Vihear (Cambodia v. Thai.), Merits, Judgment, 1962 I.C.J. 6 (June 15)).

[107] *Nuclear Tests Case*, *supra* note 106, at 473.

[108] D'Amato, *supra* note 105, at 601.

[109] *Id.*

[110] MALCOLM SHAW, INTERNATIONAL LAW 98 (2003); *see also* Andrew Mitchell, *Good Faith in WTO Dispute Settlement*, 7 MELB. J. INT'L L. 339, 345 n.44 (2006) (*quoting* Disa Sim, *The Scope and Application of Good Faith in the Vienna Convention on Contracts for the International Sale of Goods*, *in* REVIEW OF THE CONVENTION ON CONTRACTS FOR THE INTERNATIONAL SALE OF GOODS (CISG) 2002–2003 19, 61 (PACE INT'L L. REV. ed., 2004), *available at* http://www.cisg.law.pace.edu/cisg/biblio/sim1.html).

[111] *Cf.* Sim, *supra* note 110 (arguing that "[o]ne should thus treat good faith as a moral aspiration, but not as a substantive legal doctrine"); *see also* SHAW, *supra* note 110, at 98.

ing of Article 2(2) of the United Nations Charter,[112] the Declaration on Principles of International Law Concerning Friendly Relations and Co-operation among States,[113] and the jurisprudence of the International Court of Justice.[114] Each of these sources refers to good faith as the basic principle informing States' compliance with *existing* legal obligations. Contrary to the view quoted above, the *Nuclear Tests Case* could, in theory, be used to support this argument, when one recognizes that the Court looked first to the intentions of the declaring State[115] when it determined the legal value of a unilateral declaration. In addition, it acknowledged that good faith is a "basic principle governing the *creation and performance of legal obligations, whatever their source*" (emphasis added),[116] thereby appearing to implicitly exempt good faith as one of these sources. In practice, however, the Court ultimately used the good faith principle as a foundation on which a unilateral declaration can assume legal relevance. Thus, it seems that the Court further expanded the scope of good faith in international law, not only encompassing a general principle governing the application of existing legal obligations, but also including its role as a source of law.

In any event, even if one denies that the good faith principle acts as a source of international law, a case can be made that it endows General Assembly Resolutions with a "quasi-legal" status. Indeed, even if a General Assembly Resolution does not by itself legally oblige compliance, good faith forms the basis for a general duty of States to act in accordance with it. This difference is only one "of degree rather than of kind."[117] Consequently,

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[112] U.N. Charter art. 2 para. 2 (stating "All Members, in order to ensure to all of them the rights and benefits resulting from membership, *shall fulfil in good faith the obligations assumed by them in accordance with the present Charter*" (emphasis added)).

[113] Principle 1, according to which all States shall, among other duties, "comply *in good faith with their obligations* under the generally recognized principles and rules of international law with respect to the maintenance of international peace and security, and shall endeavour to make the United Nations security system based on the Charter more effective" (emphasis added).

[114] *See, e.g.*, Border and Trans-border Armed Actions (Nicar. v. Hond.), Jurisdiction and Admissibility, Judgement, 1988 I.C.J. 69, 105–06 (Dec. 20); *see generally*, SHAW, *supra* note 110, at 98.

[115] *Nuclear Tests Case*, *supra* note 106, at 472.

[116] *Id.* at 473.

[117] Johnson, *supra* note 48, at 101.

according to the terms of the Declaration on Space Benefits, a quasi-legal duty to engage in international cooperation in space activities would rest on the adopting States by virtue of good faith.

E. Shortcomings

Despite the possible legal effects that one could attribute to the Declaration on Space Benefits by means of custom, good faith, or as authoritative means of interpretation of pre-existing treaty law, the vagueness of its wording and the solely "moral" dimension of most of its provisions prevent this instrument from having *practical* legal value. Its language encourages States to adopt certain conduct, rather than declaring mandatory rules.[118] This is confirmed by the fact that this is a "should," rather than a "shall" declaration.[119] The principles expressed are "general and reflect desiderata,"[120] defining "more rights, than [they do] obligations."[121] Furthermore, even when these principles present a certain mandatory dimension, essential expressions such as "on an equitable and mutually accepted basis" and "in the modes that are considered most effective and appropriate by the concerned States" are not defined. On top of that and in addition to the fact that no enforcement mechanism is provided for in the text of the Declaration, its imprecise language and its vague content impede any practical enforcement of the provisions.

Under these circumstances, it is evident that any attempt to affirm the potential role of the Declaration on Space Benefits in consolidating pre-existing customs or leading to the formation of new customary law stalls due to the impossibility of identifying the exact content of the related obligations.

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[118] Jitendra S. Thaker, *The Development of the Outer Space Benefits Declaration*, 22 ANNALS AIR & SPACE L. 537, 555 (1997).

[119] *See* H. A. Wassenbergh, *The International Regulation of an Equitable Utilization of Natural Outer Space Resources*, *in* 39TH PROC. COLLOQ. L. OUTER SPACE 138, 139 (1996).

[120] *Id.*

[121] Thaker, *supra* note 118, at 555.

Similarly, when looking at the Declaration as an authoritative means of interpretation of Article I(1) of the Outer Space Treaty, there is still a question as to whether, and to what extent, this new instrument has clearly interpreted the vague terminology of the "benefit of mankind provision," thus ending the controversy over its moral or legal nature and the extent of its scope. Although it is apparent from the text of the Declaration that cooperation should be on an "equitable and mutually acceptable basis,"[122] and therefore that any interpretation of Article I(1) of the Outer Space Treaty that is based on a concrete sharing of economic benefits needs to be rejected, no further *clear* indication is given as to the terms by which States should determine their participation in international cooperation in the exploration and use of outer space.

The same reasoning applies when the legal or "quasi-legal" value of the Declaration comes from the general duty of States to act in good faith, to satisfy the legitimate expectations created by their adoption of the Declaration. Again, the Declaration does not possess the clarity sufficient to inform States of their precise legal duties. Thus, if States adhere to the principles of the Declaration, this observance appears to be mainly based on their moral and political convictions.

Nonetheless, despite its lack of clear legal obligations, there is nothing to suggest that the Declaration on Space Benefits has failed to contribute to the development of international space law or that it has been an inadequate instrument in regulating international space relations. Because of these legal shortcomings, the true essence of the Declaration on Space Benefits is, to a large extent, as a political manifesto. Yet since law and politics are closely intertwined, international law reflects the reality of political agreements between States, which are usually informed by moral considerations. Therefore, despite the murky legal character with which the Declaration is endowed, its ultimate contribution to the evolution of space law rests strongly on its political and moral value.

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[122] Declaration on Space Benefits, *supra* note 42, at ¶ 2.

IV. THE MORAL AND POLITICAL VALUE OF THE DECLARATION ON SPACE BENEFITS

While the legal nature of United Nations General Assembly resolutions (and in particular, the Declaration on Space Benefits) is debatable and has been analyzed in the previous section of the present Article, the political nature of declarations of this sort is generally not disputed.[123] When Member States adopted the Declaration in the General Assembly, this action was the result of a political body exercising a political function, rather than a juridical one. States use resolutions to make a point,[124] rather than to legislate. Furthermore, because States know that resolutions are not legally binding, they may be more willing to enter into a compromise and to silence their objections.[125] Thus, the real question is not whether the Declaration is a political instrument, but rather the extent to which it exerts its influence.

The result of ten years of negotiations, the Declaration marked the end of the debate between States over the meaning and scope of international cooperation in space. The developing nations had lost their initial strong-arm attempt to establish mandatory technology transfers, and after their concessions in the Declaration, shifted their focus away from these demands.[126] In this way, they abandoned the claim that outer space, as the "common heritage of mankind," demanded the sharing of economic benefits that come from outer space activities,[127] and reaffirmed Article I(2) of the Outer Space Treaty, which provides for the free exploration and use of outer space. In return for the right to determine the nature and level of participation in coop-

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[123] *See, e.g.*, Terekhov, *supra* note 49, at 98.

[124] *But see* Schwebel, *supra* note 56, at 302 (stating the argument that Member States of the UN General Assembly "don't meaningfully support what a resolution says").

[125] *Cf.* Onuma Yasuaki, *Is the International Court of Justice an Emperor Without Clothes?*, 8 INT'L LEGAL THEORY 1, 16–17 (2002) (arguing that because States know that General Assembly resolutions "have only hortatory force, they vote in the affirmative when otherwise they would not").

[126] *See* TRONCHETTI, *supra* note 31, at 80 (describing this process as an abandonment of the "Common Heritage of Mankind" principle).

[127] *Id.*

erative ventures, however, the space powers reiterated their commitment to using space for the benefit of all countries through international cooperation, which while not obligatory as a legal duty, at least carries moral weight. This implies that the States that agree to the arrangement are making an earnest guarantee that they will work to modify state practice or effect national legislation on the issue. These political and moral obligations, while not binding,[128] can nonetheless be very strong, and are surely tied to a State's reputation in the larger realm of international relations.

The Declaration on Space Benefits also had important consequences in light of its effect on UNISPACE III. The focus of this international conference was "Space Benefits for Humanity in the Twenty-first Century."[129] Because the debate that had underscored the creation of the Declaration on Space Benefits was formally resolved, the discussion at UNISPACE III could focus on the substance of how to share those benefits for all of humanity,[130] rather than becoming mired again in ideological debates.[131] In order to assist with the implementation of the recommendations it proposed, UNISPACE III established a new voluntary fund to support projects that "increase the level of awareness of space technology development and its impact on social and economic development."[132] At the conclusion of UNISPACE III, the Committee adopted the "Space Millennium: Vienna Declaration on Space and Human Development,"[133]

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[128] *Cf.* Johnson, *supra* note 48, at 114–15 (concluding that "while Resolutions of the General Assembly may have 'political effect,' they do not give rise to political obligations").

[129] Its primary objectives were "(a) to promote effective means of using space technology to assist in the solution of problems of regional or global significance and (b) to strengthen the capabilities of Member States, in particular developing countries, to use the applications of space research for economic, social and cultural development." Comm. on the Peaceful Uses of Outer Space, Sci. & Tech. Subcomm, *Rep. on its 34th Sess., Feb, 17-28, 1997*, ¶ 18, U.N. Doc. A/AC.105/672, Annex II, (Mar. 10, 1997).

[130] *See* UNISPACE III, *supra* note 79, at ¶¶ 377–410.

[131] UNISPACE I (1968) and II (1982) were marked by political conflicts over the distribution of resources that prevented substantive discussion of the benefits of space. *See* Marietta Benkö & Kai-Uwe Schrogl, *Space Law at UNISPACE III (1999) and Beyond*, *in* 40TH PROC. COLLOQ. L. OUTER SPACE 157, 157–58 (1997).

[132] UNISPACE III, *supra* note 79, at ¶ 396.

[133] Adopted by the Conference at its 10th plenary meeting on July 30, 1999.

which "[r]eaffirm[ed]" the Declaration on Space Benefits in its preamble and "[r]ecognize[d] that the promotion of bilateral, regional and international cooperation in the field of outer space must be guided by General Assembly resolution 51/122 [the Declaration on Space Benefits]."[134]

At the same time that delegations in the Legal Subcommittee were working towards the finalization of the terms of the Declaration on Space Benefits, a consistent understanding of the essence of international cooperation permeated the entire work of COPUOS.[135] The Secretary-General issued a *note verbale* on August 4, 1995 and another on July 19, 1996 to all permanent representatives to the United Nations,[136] requesting that they submit information "about those space activities that were or could be the subject of greater international cooperation, with particular emphasis on the needs of the developing countries."[137] These requests were made in the shadow of the debate in the Legal Subcommittee, and when the Declaration was finally adopted, it cemented the commitment of nations to consider existing issues related to international cooperation and to think about how to tackle new ones.

The political commitment expressed by States through the adoption of General Assembly declarations may also contribute to the development of international law by influencing the future law-making process.[138] The Declaration on Space Benefits expresses the political commitment of States to the principles of

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[134] UNISPACE III, *supra* note 79, at Res. 1, pmbl., and ¶ 5.

[135] In 1995, the Scientific and Technical Subcommittee re-established the Working Group of the Whole to Evaluate the Implementation of the Recommendations of the Second United Nations Conference on the Exploration and Peaceful Uses of Outer Space (UNISPACE 82). This Working Group recommended that COPUOS "should request all States, particularly those with major space or space-related capabilities, to continue to inform the Secretary-General annually, as appropriate, about those space activities that were or could be the subject of greater international cooperation, with particular emphasis on the needs of the developing countries." Comm. on the Peaceful Uses of Outer Space, Sci. & Tech. Subcomm, *Rep. on its 32nd Sess., Feb. 6–16, 1995*, ¶ 9, U.N. Doc. A/AC.105/605, Annex II, (Feb. 24, 1995).

[136] International cooperation in the peaceful uses of outer space: activities of Member States, Note by the Secretariat, ¶ 3, U.N. Doc. A/AC.105/614 (Nov. 8, 1995); International cooperation in the peaceful uses of outer space: activities of Member States, Note by the Secretariat, ¶ 4, U.N. Doc. A/AC.105/661 (Dec. 5, 1996).

[137] U.N. Doc. A/AC.105/605, *supra* note 135, at Annex II, ¶ 9.

[138] *See* Terekhov, *supra* note 49, at 105.

mutual and equitable cooperation in space. Thus, as they already have on a bilateral basis,[139] the principles expressed in the Declaration are likely to be confirmed if a new multilateral treaty governing space activities is drafted in the Legal Subcommittee. Like the 1963 Declaration that underscored the Outer Space Treaty, the terms of the Declaration on Space Benefits are at the same time vague enough, yet comprehensive enough that they may serve as a backdrop to any future development in space law.

The Declaration on Space Benefits, like other resolutions that "guide States in situations where specific treaty norms have not yet been adopted or are too general[,] . . . contribute[s] to ensuring orderly and dispute-free interaction of States in various areas of human activities in outer space."[140] As has been noted, "[b]enefit sharing is part of space policy . . . . Whether or not it is judicially enforceable is not as important as whether it is a good idea."[141] Today, States, non-governmental, and intergovernmental organizations have the opportunity to present their activities in this area under the agenda item of "Ways and means of maintaining outer space for peaceful purposes."[142] Although this reporting is voluntary, it can nonetheless serve as a metric for whether States are fulfilling the bargain of the Declaration on Space Benefits and can provide a forum for States to demonstrate their political promise to uphold the spirit of the Declaration.

More generally, the role of the Declaration in expressing and informing States' political commitment towards international cooperation in outer space is evidenced by the yearly United Nations General Assembly Resolution, "International

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[139] *See, e.g.*, Framework Agreement between the Government of the Federative Republic of Brazil and the Government of the People's Republic of China on Cooperation in the Peaceful Applications of Outer Space Science and Technology, Nov. 8, 1994, 2036 U.N.T.S. 35218.

[140] Terekhov, *supra* note 49, at 105.

[141] Declan J. O'Donnell, *Benefit Sharing: The Municipal Model*, *in* 39TH PROC. COLLOQ. L. OUTER SPACE 151, 157 (1996).

[142] *See, e.g.*, Comm. on the Peaceful Uses of Outer Space, *Rep. on its 53rd Sess., June 9–18, 2010*, ¶ 32, U.N. Doc. A/65/20; GAOR, 65th Sess., Supp. No. 20 (2010).

cooperation in the peaceful uses of outer space,"[143] which recalls the Declaration on Space Benefits, and reiterates the importance of extending the benefits of outer space to developing countries.[144] The resolution goes on to note the achievement made in national and cooperative space projects and highlights the "importance of further developing the legal framework to strengthen international cooperation in this field."[145] In addition, the resolution emphasizes "that regional and interregional cooperation in the field of space activities is essential to strengthen the peaceful uses of outer space [and to] assist States in the development of their space capabilities."[146] This language is echoed in the 2010 COPUOS Report, where it states that the "Committee had made concrete efforts to promote regional and interregional cooperation and coordination in space activities for the benefit of all countries."[147]

It is apparent that international cooperation has increasingly developed according to the principles laid down in the Declaration on Space Benefits. Despite divergent views on the specific requirements of benefit sharing present during the negotiation of the Declaration and remaining to this day, States still provide access to the benefits of space technology, albeit in ways that mirror their understanding of the Declaration. The United States, for example, while opposed to the mandatory technology transfer that was first proposed by the developing countries, has nonetheless provided access to its remote sensing data from Landsat.[148] Similarly, the Chinese-Brazilian Earth Resources

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[143] *See, e.g.*, U.N. Doc. A/RES/65/97 (Jan. 20, 2011); U.N. Doc. A/RES/64/86 (Jan. 20, 2010); U.N. Doc A/RES/63/90 (Dec. 18, 2008); U.N. Doc A/RES/54/67 (Feb 11, 2000).

[144] U.N. Doc. A/RES/65/97 (Jan 20, 2011), at pmbl..

[145] *Id.*

[146] *Id.* at ¶ 18.

[147] U.N. Doc. A/65/20, *supra* note 142, at ¶ 32; *see also* U.N. Doc. A/AC.105/973, *supra* note 84 and accompanying text, at ¶ 36 (reiterating that States should act in accordance with the Declaration on Space Benefits when "building up national infrastructure to use space-derived geospatial data for sustainable development").

[148] U.N. Doc. A/65/20, *supra* note 142, at ¶ 291; *see also, Annex of Early Achievements to the Report on Progress 2007: Cape Town Ministerial Summit*, *in* GROUP ON EARTH OBSERVATIONS, § 5 (Nov. 30, 2007), http://www.earthobservations.org/documents/geo_iv/30_%20Annex%20of%20Early%20Achievements%20to%20the%20Report%20on%20Progress.pdf [hereinafter *Annex of Early Achievements*].

Satellite (CBERS), a joint venture between China and Brazil,[149] has resulted in the distribution of free satellite images to African countries.[150] The year before China announced this dissemination of Earth observations to African nations, a white paper describing the Chinese National Space Administration's activities in 2006, stated:

> International space cooperation should adhere to the fundamental principles stated in the "Declaration on International Cooperation in the Exploration and Use of Outer Space for the Benefit and in the Interest of All States, Taking into Particular Account the Needs of Developing Countries." China maintains that international space exchanges and cooperation should be strengthened on the basis of equality and mutual benefit, peaceful utilization and common development.[151]

In the next section of the white paper, the Chinese National Space Administration emphasized their policies toward developing international cooperation in space activities, including "[r]einforcing space cooperation with developing countries, and valuing space cooperation with developed countries."[152]

V. CONCLUSIONS

In the fifteen years since the Declaration on Space Benefits was adopted, international cooperation in space activities among nations of all levels of technological development has increased. Although the Declaration has no practical *legal* relevance (regardless of whether one attributes legal effects to it), it has contributed to this development as a political instrument, serving to reinforce and delineate a common approach towards international cooperation in outer space. Moving forward, it remains to be seen whether the Declaration will continue to exert

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[149] *See Cooperação Internacional*, AGÊNCIA ESPACIAL BRASILEIRA, http://www.aeb.gov.br/indexx.php?secao=cooperacao_internacional (last visited May 12, 2012).

[150] *Annex of Early Achievements*, *supra* note 148, § 4.

[151] White Paper issued by the Information Office of China's State Council, *China's Space Activities in 2006*, (Oct. 12, 2006), *available at* http://www.cnsa.gov.cn/n615709/n620682/n639462/79381_2.html.

[152] *Id.* at 1.

the same influence in light of future developments in the exploration and use of outer space.

In an era where more and more countries are becoming involved in the exploitation and use of outer space, principles of international cooperation begin to take on ever greater significance. In addition, the increasing global dependence on space activities and satellite data will continue to challenge the interpretation of using and exploring outer space for the benefit of all countries.

International cooperation will continue to grow in relevance, as space projects become increasingly far-reaching and ever more expensive. Budgets are tightening, and despite the spin-off benefits, the national prestige, and the scientific discoveries that come from space activities, even space powers like the United States are beginning to cut back their activities. Yet, as governments look for ways to share the costs of their space activities, continuing privatization and commercialization of many space activities mean that there will be a far greater role for governmental and non-governmental entities to work together in the coming years. This need was foreseen by the Declaration, which specifically mentions in paragraph 4, "governmental and non-governmental; commercial and non-commercial" as viable modes of cooperation that States are free to choose. In order to enjoy the benefits of space, regardless of whether that means in the purely technological or the economic sense, nations and private enterprise will need to work together.

Despite this attempt to address the need to cooperate, however, the Declaration has no binding force, and thus takes its value from the political willingness of States to determine that its principles are followed. In the face of this rapid expansion of activities in outer space, it would be useful to codify the principles embodied in the Declaration into formal treaty obligations. Any attempt at codification, however, brings with it its own questions and challenges: Can States agree on common definitions that are clear enough to overcome the shortcomings of the Declaration? Are States even ready to reach a binding compromise and end the soft law phase in space law making? Can any definition of international cooperation foresee further technological developments in space?

For these reasons, codification is unlikely now. As the Declaration has served fundamentally as a political and moral instrument over the last fifteen years, it will likely remain so, at least in the near future. One of the goals of the Declaration was to fill the legal gaps caused by technological developments;[153] with continued technological growth, this rift may soon widen to the point that States feel that further gap filling is necessary. The future remains uncertain, but even without formal codification of the principles of the Declaration, strong signals can be found that nations will continue to uphold the political commitment they made. For example, in the "Declaration on the Fiftieth Anniversary of Human Space Flight and the Fiftieth Anniversary of Committee on the Peaceful Uses of Outer Space"[154] from June 2011, COPUOS Member States stressed once again the fundamental principles of the Declaration on Space Benefits by "reaffirm[ing] the importance of international cooperation in developing the rule of law, including the relevant norms of space law, and of the widest possible adherence to the international treaties . . ."[155] and "emphasiz[ing] that regional and interregional cooperation in the field of space activities is essential to strengthen the peaceful uses of outer space, assist States in the development of their space capabilities and contribute to the achievement of the goals of the United Nations Millennium Declaration."[156]

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[153] *See* U.N. Doc. A/AC.105/C.2/L.162, *supra* note 47 and accompanying text.
[154] U.N. Doc. A/AC.105/L.281/Add.2 (June 6, 2011).
[155] *Id.* at ¶ 10.
[156] *Id.* at ¶ 14.